

**IN THE COURT OF COMMON PLEAS
KNOX COUNTY, OHIO**

State of Ohio, ex rel. Dave Yost,
Attorney General,

Plaintiff,

Case No. 20IN06-0149

v.

JUDGE RICHARD D. WETZEL

The Landings Property Association, Inc., *et al.*,

Defendants.

Mullins Bros., Ltd.,

Defendant/Third-Party
Plaintiff,

v.

Carol A. Didinger, Trustee, *et al.*,

Third-Party Defendants.

MOTION TO WITHDRAW AS COUNSEL

Now come Stephen E. Chappellear, Kyle D. Tucker, and the law firm of Eastman & Smith LTD. and, in accordance with Rule 1.16 of the Ohio Rules of Professional Conduct and Local Rule 10.02, respectfully move the Court for leave to withdraw as counsel for defendants and/or third-party defendants Angela J. Arumpanayil, Trustee; Cary S. Beck; Erika D. Beck; Andrea Belcher; Kenneth Belcher; Eric Lee Brown; Revecca M. Buckwalter; Aaron Burak; Allison Burak; Cheryl K. Christopher; Joseph R. Christopher; Christopher A. Clark; Kelly L. Clark; Charles and Dorothy Cochran Keystone Trust, Mark Cochran, Trustee; Marcell Codispoti; Peggy Codispoti; Paula C. Compton-Solie; Edward L. Cosby; Janice Cosby, Trustees; Derk D. Demaree; Anita M. Demaree; Mark Driftmyer, Trustee; Donald L. Garvic; Andreas Giakoumas; Ypatia Giakoumas; James Goodrich; Diane Goodrich; Deborah Hamilton; Adrienne D. Harris; Jeffry D. Harris; Kyle

L. Henthorn; Natosha E. Henthorn; Bharon Hoag; Heather Hoag; Shane Alan Kinton, Trustee; Cynthia Kosmos; James Kosmos; Robert S. Lebold; Jennifer Lebold; Richard Littleton; Vicki Littleton; Mark A. Long; Denise A. Long; Jesse L. Marlow; Jane C. Marlow; Hewlet McFarlane; Angela N. Merryman; Mount Vernon Nazarene University; Jeanne C. Mullendore; Chetan I. Patel; Chetna C. Patel; Diana L. Peterson; Randolph B. Plasse; Tina M. Plasse; Brian Przeracki; Kenneth Rhoades; Mary Rhoades; Mary Margaret Snow; Matthew Snow; Megan Snow; Phil Stopher; Ellen Stopher; Jeffrey Strickland; Rachel Strickland; Mark Tuel; Michael Ulrey; Rosemary Ulrey; Lawrence Vail; Nancy Vail; Alexander Varughese; Marcia J. Varughese; Andrea White; Dianne L. Williams; and Timothy J. Williams, for the reasons set forth in the following Memorandum in Support of Motion. A proposed Entry is submitted with this motion.

Respectfully submitted,

EASTMAN & SMITH LTD.

/s/ Stephen E. Chappellear

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MEMORANDUM IN SUPPORT OF MOTION

Several of the individuals named above recently informed undersigned counsel that they wish to terminate their legal representation in this matter. Rule 1.16(a)(3) of the Ohio Rules of Professional Conduct provides that when a lawyer is discharged by a client, that lawyer shall not represent the client and the lawyer shall withdraw from the representation of the client.

In addition, several individuals named above have indicated that they are unwilling or unable to pay legal fees for continued legal representation. Failure to pay legal fees is grounds for permissive withdrawal from representation, pursuant to Rule 1.16(b)(5) of the Ohio Rules of Professional Conduct.

Further, all of the individuals named above have failed to provide necessary and critical information to legal counsel regarding establishment of a homeowners association, potential assessments, and future strategy and direction of this litigation. This has made continued legal representation unreasonably difficult, which is grounds for permissive withdrawal from representation, pursuant to Rule 1.16(b)(6) of the Ohio Rules of Professional Conduct.

The failure of these individuals to provide necessary and critical information to legal counsel also creates the potential for conflicts of interest between and among them, a violation of Rule 1.7 of the Ohio Rules of Professional Conduct. This is grounds for mandatory withdrawal.

Counsel advised all of the individuals named above of intent to file this motion, and provided detailed information on the status of this case, and the upcoming telephone status conference on September 25, 2026 at 11:00 a.m. Counsel also strongly recommended that each of the individuals named above immediately retain substitute counsel.

For all of these reasons, counsel respectfully requests that they be granted leave to withdraw as counsel.

Respectfully submitted,

EASTMAN & SMITH LTD.

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CERTIFICATE OF SERVICE

I hereby certify that a true and accurate copy of the foregoing was served upon the following via electronic or regular mail this 14th day of September, 2026.

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